

(FAC, ¶¶ 32-33.)

The Court finds Plaintiff's allegations as to element five sufficient for pleading purposes. Additionally, the Court finds that the intent to defraud is properly alleged at paragraphs 21 and 117 of the FAC. (FAC, ¶¶ 21 ["Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being, in part to enrich themselves at the expense of consumers."]; 117 ["Defendants intentionally concealed material information regarding the Defective Engine to drive up sales and maintain their market power. Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being. Defendants' acts were perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent, were done to enrich themselves at the expense of consumers, gain commercial advantage over competitors, and to drive consumers away from consideration of competitor's vehicles."].)

Plaintiff has properly pled his fraudulent concealment claim with the requisite specificity and thus the punitive damages prayer will be allowed to remain.

#### **Ruling**

A properly pled fraud claim supports the punitive damages allegation. Accordingly, the Court **DENIES** Defendant's motion to strike punitive damages allegations from the FAC.

**11. 9:00 AM CASE NUMBER: C26-00479**

**CASE NAME: EVAN OWENS VS. ELIZABETH LAYN**

**1ST AMENDED COMPLAINT**

**FILED BY: LAYN, ELIZABETH G.**

**\*TENTATIVE RULING:\***

On the Court's own motion, the hearing on the demurrer is continued to **9:00 a.m. on September 4, 2026.**

**12. 9:00 AM CASE NUMBER: C26-00637**

**CASE NAME: WILLIAM DESENA VS. WALNUT CREEK COMMUNITY HEALTHCARE, LLC**

**RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY JUSTIN VITUG, ESQ.**

**FILED BY: DESENA, WILLIAM**

**\*TENTATIVE RULING:\***

The unopposed motion of **Justin Vitug and Javaheri & Yahoudai** to be relieved as counsel for **Plaintiff William Desena** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and